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General Comment

On behalf of The Joint Commission, please see the attached letter.

Attachments

2025_03_14_The Joint Commission Letter_NITRD NCO_AI Action Plan RFI

March 14, 2025

Kirk Dohne, JD, MBA
Acting Director
National Coordination Office
Networking and Information Technology Research and Development
Office of Science and Technology Policy
2415 Eisenhower Avenue
Alexandria, VA 22314

[Submitted electronically to [REDACTED] and at regulations.gov]

Dear Acting Director Dohne:

The Joint Commission appreciates the opportunity to provide input to the Office of Science and Technology Policy (OSTP) Networking and Information Technology Research and Development National Coordination Office request for information, *Development of an Artificial Intelligence (AI) Action Plan* (“Plan”).

The Joint Commission Enterprise includes The Joint Commission, Joint Commission Resources, Joint Commission International and the National Quality Forum. The Joint Commission is the nation’s oldest and largest health care accreditation organization. Founded in 1951, The Joint Commission’s mission is *enabling and affirming the highest standards of health care quality and patient safety for all*. An independent, not-for-profit organization with a global presence, The Joint Commission has programs that accredit or certify more than 24,000 health care organizations (HCOs) and programs in the United States, including most of the nation’s hospitals. Although accreditation is voluntary, more than a dozen Joint Commission programs are recognized by federal and state regulatory bodies, including the Centers for Medicare and Medicaid Services (CMS), for Medicare and licensure purposes.

The Joint Commission recommends OSTP’s AI Action Plan address AI in health care. We would welcome the opportunity to work with OSTP on this critical area and to share with you our draft Responsible Use of Health AI (RUAI) guidance and our soon to be announced RUAI certification.

As the number of health care-integrated AI tools proliferates, health systems are using AI tools in a variety of ways to enhance clinical care. These tools help clinicians to improve the quality of care, such as to diagnose disease earlier, personalize treatment plans, or identify patients who may need additional follow-up care. For example, an AI tool used to improve diagnosis is the Sepsis Prediction and Optimization Therapy (SPOT) tool, which was developed by clinicians at a large health system to enhance sepsis detection within hospital medical/surgical units. This model helped to save an estimated 6,600 lives over a four-year period.¹

¹ J. S. Guy, et al., *Accelerating the Clinical Workflow Using the Sepsis Prediction and Optimization of Therapy (SPOT) Tool for Real-Time Clinical Monitoring*, 1 NEJM CATALYST 3 (2020).

AI is also helping HCOs to decrease administrative burden through improved scheduling and transcription tools that reduce the time needed for clinicians to document patient encounters. AI also accelerates quality improvement efforts by improving the data captured in the electronic health record and automating aspects of the quality reporting. AI-enabled quality measures are also being introduced. The National Quality Forum is developing guidance and recommendations for evaluating and implementing quality measures that use AI-enabled elements. This guidance will help measure developers, health systems, and quality and accountability program owners (state oversight bodies, payers, and health systems) implement the next generation of AI-enabled quality measures. By utilizing these tools, HCOs are able to improve quality and decrease costs through reducing errors and unnecessary care while streamlining administrative processes.

However, these advances also bear some amount of risk. The increased reliance on large datasets also increases the possibility of a privacy breach, and algorithms may still yield false outcomes, leading to possible misdiagnosis and ultimately, patient harm. Currently, there is no systematic mechanism to evaluate adverse outcomes and other critical AI monitoring needs. The health care field would benefit from a framework that helps implement guardrails for responsible AI use in health care. Providing a systematic approach to implementation and evaluation of tools is a critical driver for accountability and safety within the organization, allowing agile innovation without hampering the use and integration of AI tools throughout the organization. A health care sector framework could also promote learning by establishing best practices for information sharing, including monitoring adverse outcomes.

While the FDA has provided oversight on the subset of AI tools falling under the medical device classification, there are a wide array of AI tools that might be in use across a health care system, many of which exist outside of FDA's jurisdiction. Other federal agencies could play a role as well. However, federal administrative processes and regulatory burden could stifle innovation and adoption. A few states have introduced regulations around health AI tools. State oversight though would mean AI developers and multi-state health care systems will need to navigate 50 possible regulations, which too would hinder innovation. Therefore, other organizations will need to play a role to validate that a responsible AI framework is deployed at the health care delivery level. For example, HCOs will need to monitor algorithms throughout the lifecycle to ensure that AI tools are still providing accurate outcomes over time, which may require updates or input from developers to prevent algorithmic drift while still enabling learning AI tools.

In September 2024, The Joint Commission hosted a convening in Washington, D.C. to gather input from patient organizations, community providers, health systems, health policy experts, congressional leaders, including Representative Obernolte (R-CA), who co-chaired the bipartisan House Task Force on Artificial Intelligence, and leading AI developers on a Responsible Use of Health AI framework. During the meeting, participants identified areas of opportunity, knowledge and training gaps, and where consensus is growing around certain governance structures. To further gather input on a framework, The Joint Commission conducted surveys of hospitals and health systems we serve on their top uses and concerns regarding AI tools.

Drawing from the convening and HCO surveys, The Joint Commission is working on a draft Responsible Use of Health AI guidance and certification, and we would welcome the opportunity to share this with you. Our intent is to provide guidance to organizations that would enable them to drive innovation in health care and improve quality, while providing common sense guardrails to ensure that HCOs are meeting their obligations to patients.

The Joint Commission has already operationalized some of the key principles identified during the convening as part of its voluntary Responsible Use of Health Data (RUHD™) certification for hospitals and health systems released in January 2024. Intended to support the responsible use and sharing of deidentified data that undergirds algorithm development and quality improvement, the RUHD certification provides HCOs with a blueprint of best practices for safely handling patient data for secondary purposes. During the certification evaluation, HCOs must demonstrate that they have policies and procedures in place regarding governance structure, deidentification processes, transparency of use, limitations of use, patient engagement, and algorithm validation.

As The Joint Commission continues to collaborate with other thought leaders in the health care space, we plan to release guidance and certification on the Responsible Use of Health AI. The Joint Commission intends for this guidance and new certification to help HCOs enhance patient safety by mitigating and addressing AI safety concerns while improving patient outcomes by leveraging AI's potential. HCOs should take the lead to proactively adopt this framework because it underscores the health care delivery system's commitment to responsible use of AI, decreases the risk of government regulatory burden, and most importantly, protects their patients from adverse events.

The Joint Commission's RUHD certification and our soon to be announced RUAI certification ensure fundamental guardrails while - consistent with the Executive Order - facilitating innovation that can improve productivity, safety, and quality.

The Joint Commission looks forward to an opportunity to work with the National Science Foundation and the Office of Science and Technology Policy in guiding AI implementation and adoption in the health care field. The Joint Commission will also continue to share what we learn with federal partners as well as health care systems to promote safe and high-quality health care supported by AI tools. We are pleased to answer any questions you may have. Please do not hesitate to contact me or Patrick Ross, Associate Director, Public Policy, at

[REDACTED] or [REDACTED]

Sincerely,

Kathryn E. Spates
Executive Vice President, Public Policy and Government Relations